

26TRCV02190 26TRCV02190

County: los-angeles

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Case Number: 26TRCV02190 Hearing Date: September 16, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Wednesday, September 16, 2026

Calendar No.

PROCEEDINGS

Katarina

Campbell v. Pro Health Advanced Imaging, et al.

26TRCV02190

1.

Pro Health

Advanced Imaging Medical Group, Inc., and Babak Shayestehfar, M.D.'s Demurrer
to First Amended Complaint

TENTATIVE RULING

Pro Health Advanced Imaging Medical Group, Inc., and
Babak Shayestehfar, M.D.'s Demurrer to First Amended Complaint is sustained
with 20 days leave to amend.

Background

Plaintiff filed the Complaint on June 18, 2026 and the First Amended Complaint on July 8, 2026. Plaintiff alleges the following facts. Plaintiff alleges medical malpractice against Defendants.

Meet and Confer

Defendants set forth a meet and confer declaration in sufficient compliance with CCP § 430.41. (Decl. Tiffany M.N. Tran, ¶¶ 3-5.)

Demurrer

A demurrer tests the sufficiency of a complaint as a matter of law and raises only questions of law. (Schmidt v. Foundation Health (1995) 35 Cal.App.4th 1702, 1706.) In testing the sufficiency of the complaint, the court must assume the truth of (1) the properly pleaded factual allegations; (2) facts that can be reasonably inferred from those expressly pleaded; and (3) judicially noticed matters. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) The Court may not consider contentions, deductions, or conclusions of fact or law. (Moore v. Conliffe (1994) 7 Cal.App.4th 634, 638.) Because a demurrer tests the legal sufficiency of a complaint, the plaintiff must show that the complaint alleges facts sufficient to establish every element of each cause of action. (Rakestraw v. California Physicians Service (2000) 81 Cal.App.4th 39, 43.) Where the complaint fails to state facts sufficient to constitute a cause of action, courts should sustain the demurrer. (C.C.P., § 430.10(e); Zelig v. County of Los Angeles (2002) 27 Cal.App.4th 1112, 1126.)

Sufficient facts are

the essential facts of the case "with reasonable precision and with particularity sufficiently specific to acquaint the defendant with the nature, source, and extent of his cause of action." (Gressley v. Williams (1961) 193 Cal.App.2d 636, 643-644.) "Whether the plaintiff will be able to prove the pleaded facts is irrelevant to ruling upon the demurrer." (Stevens v. Superior Court (1986) 180 Cal.App.3d 605, 609–610.) Under Code Civil Procedure § 430.10(f), a demurrer may also be sustained if a complaint is "uncertain." Uncertainty exists where a complaint's factual allegations are so confusing they do not sufficiently apprise a defendant of the issues it is being asked to meet. (Williams

v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2.)

Defendant demurs to

the First Amended Complaint pursuant to CCP § 430.10(e) on the grounds that the cause of action fails to state sufficient facts.

First Cause of

Action for Medical Malpractice

Defendant's

demurrer to the first and only cause of action is sustained with 20 days leave to amend. Plaintiff fails to state sufficient facts to state a cause of action.

"[I]n

any medical malpractice action, the plaintiff must establish: (1) the duty of the professional to use such skill, prudence, and diligence as other members of his profession commonly possess and exercise; (2) a breach of that duty; (3) a proximate causal connection between the negligent conduct and the resulting injury; and (4) actual loss or damage resulting from the professional's negligence." Tortorella v. Castro (2006) 140 Cal.App.4th 1, 3, fn. 2 (internal citations and quotations omitted; emphasis in original).

The

First Amended Complaint is short and can be quoted verbatim. "Plaintiff Katarina Campbell, (sic) is submitting this complaint (sic) Pro Health Advance Imaging/Dr Babak Shayestehfar MD, for Medical Mal-practice (sic). I would like the office to shut down or the doctor diagnosing the x-ray be fired or put in jail. I would also like the office to pay me \$600,000 in damages. Do (sic) to this lack of knowledge I have been misdiagnosed and had the wrong therapy. I have had medical condition become worse, (sic) I now can not (sic) lift with my right arm and my right arm is in danger of having the same situation. At times I cannot lift my arm as if I am paralyzed." (First Amended Complaint.)

As

demonstrated above, Plaintiff's First Amended Complaint simply consists of accusations and conclusions and fails to set forth the required facts to meet the elements of a cause of action for medical malpractice.

Thus,

the demurrer to the First Amended Complaint is sustained with 20 days leave to

amend.

Defendant is ordered to give notice of
this ruling.